Town of Yountville

6550 Yount Street
Yountville, CA 94599

Staff Report

Agenda Item #: 11A

Yountville Town Council Staff Report

DATE: June 16, 2026

TO: Mayor and Town Council

FROM: Hilary Gaede, Communications Director/ Town Clerk

PREPARED BY: Hilary Gaede, Communications Director/ Town Clerk

RECOMMENDATION

Adopt Resolution Number 26-4427 calling and giving notice of the holding of a general municipal election to be held on Tuesday, November 3, 2026, for the election of mayor, two council members, and for the submission to the voters of one question related to Measure Y, an increase in appropriation (GANN) limits, and requesting the Board of Supervisors of the County of Napa to consolidate and render specified services to the Town relating to the conduct of the statewide general election to be held on the same date.

DISCUSSION/BACKGROUND

The Town Council adopted Ordinance Number 340-04 changing the Town's General Municipal Election date to the Tuesday after the first Monday in November of even-numbered years to coincide with the elections of the other jurisdictions within the County and to be part of the Consolidated General Municipal Elections beginning with the November 2006 election.

On June 5, 2012, the Town Council adopted Resolution Number 3026-12 recognizing changes to candidate statements related to foreign language requirements based on the 2010 Census results requiring Napa County to publish voter election materials in English and Spanish. There is no cost to the candidate for translation. The adopted budget for Fiscal Year 2026/2027 includes funding to cover translation costs for candidate statements.

Yountville Municipal Code Section 2.04.070 states the general municipal election for the Town shall be held on the first Tuesday after the first Monday in November of even-numbered years beginning November 2006. Pursuant to the Elections Code, the Town of Yountville must call and give notice of a General Municipal Election to be held Tuesday, November 3, 2026, for the purpose of electing one mayor, two (2) council members, and voting on a proposed ballot measure related to an increase in the Town's appropriations (GANN) limit.

In addition, the Town Council shall submit to the Napa County Board of Supervisors a resolution requesting that the General Municipal Election be consolidated with the Statewide General Election to be held on the same date and that, within the Town, the precincts, polling places, and election for the above-referenced officers and measure be the same; that the Napa County Elections Division canvass the returns of the General Municipal Election; and that the election be held in all respects as if there were only one election.

The attached resolution also provides for additional procedural requirements related to the election process, including but not limited to the posting of a Notice of Election and Notice to Voters of the Date After Which Arguments For or Against Town Ballot Measures Must Be Filed.

Proposed Ballot Measure – Increase in Appropriations (GANN) Limit

"To fully utilize TOT and sales tax generated from visitors for public services, parks and recreation, police, and fire emergency programs, shall the appropriations limit set by Article 13B of the California Constitution be increased by $3,000,000 plus 1/4 of TOT revenues for the prior fiscal year, for each year for a four year period commencing FY 2027/2028? By approving this appropriation limit, no existing tax is increased, and no new taxes are created."	Yes
	No

The proposed resolution authorizes the inclusion on the November 3, 2026, ballot of a measure necessary to increase the appropriations limit for the Town. The Administrative Services Director has reviewed the Town's limit and projections of proceeds of taxes for the next four years and recommends that a voter-approved override be re-established.

In summary, due to the Town's economic growth, it is necessary to increase the current appropriations limit as required by state law by $3,000,000 plus a portion of actual TOT revenue in the prior fiscal year to ensure these revenues can be spent on essential services. This approach provides a smaller initial flat increase with a portion of actual revenues based on the Town's most direct tourism-related revenue source. This option allows the annual override amount to increase or decrease based on changes in TOT revenues from the prior year. This methodology will provide the Town greater flexibility and certainty in utilizing projected tax revenues for community purposes while remaining below the appropriations limit.

The Town of Yountville has a unique financial structure, receiving approximately 88% of its revenues from TOT, property tax, and sales tax. TOT represents approximately 58% of General Fund revenues, while sales tax accounts for approximately 12%, both of which are primarily paid by visitors to the community. Local property tax revenues account for approximately 18% and are currently insufficient to cover the costs of contracted law enforcement, fire, and emergency medical services.

An override is necessary to allow the Town to continue utilizing its tax revenues for the provision of core public services such as law enforcement, fire and emergency medical services, street maintenance, parks maintenance, and maintaining the level of services currently provided to residents as outlined in the adopted budget. The Town will not be able to maintain this level of public service unless it is able to fully utilize revenues currently received and projected to be received in the future, the majority of which are generated through TOT and sales taxes.

This will be the eleventh override presented to voters since 1985. Voters have approved all prior measures.
The resolution also provides that the Town Clerk is authorized, instructed, and directed to procure and furnish any and all official ballots, notices, printed matter, supplies, equipment, and paraphernalia necessary to properly and lawfully conduct the election, and to perform all other acts necessary or required by law to implement the resolution and election process.

The Town Council recognizes that additional costs will be incurred by the Napa County Elections Division as a result of the consolidation. The Town shall reimburse the Napa County Elections Division in full for services performed upon presentation of a properly submitted itemized bill to the Town, as set forth in Elections Code Section 10002.

Determination Whether to Participate in Ballot Arguments

The Town Council has prepared arguments in favor of prior ballot measures related to increases in appropriations (GANN) limits. The information below outlines the Elections Code requirements for preparing arguments and rebuttals.

The Elections Code provides that any "member or members of the legislative body authorized by that body, or an individual voter who is eligible to vote on the measure, or bona fide association of citizens, or a combination of voters and associations, may file written argument for or against any city measure." (Elections Code, § 9282(b).) No primary argument may exceed 300 words and must include the printed name and signature of the

author or authors submitting it. If submitted on behalf of an organization, the argument must include the name of the organization and the printed name and signature of at least one principal officer who is an author of the argument. No more than five (5) signatures may appear on any argument. (Elections Code Section 9283) Rebuttal arguments may also be submitted in response to arguments either in favor of or against the measure. Rebuttal arguments are limited to 250 words and may contain no more than five (5) signatures. (Elections Code Section 9285)

Generally, the Elections Code provides that primary arguments are due fourteen (14) days from the date the Council calls the election on the measure. However, this deadline does not apply when the election is consolidated with another election. Accordingly, the deadline for primary arguments is subject to the discretion of the Elections Official/Town Clerk. The deadline for rebuttal arguments is established by state law and must be no later than ten (10) days after the final filing date for primary arguments.

If more than one argument is submitted for or against the measure, the Elections Official must select the arguments to be printed and published using the following order of preference:

1. The legislative body or members of the legislative body authorized by that body.
2. The individual voter, bona fide association of citizens, or combination of voters and associations who are bona fide sponsors or proponents of the measure.
3. Bona fide associations of citizens.
4. Individual voters who are eligible to vote on the measure.

Council should determine whether it wishes to participate in the ballot arguments or allow an individual or organization to author the primary and/or rebuttal arguments. The following may assist the Council in making these decisions:

1. Decide whether to author a primary argument in support of the measure as a whole Council or allow an organization or individual to author the primary argument.
2. If the Council decides to author the primary argument, decide whether to delegate drafting responsibilities to one or more Council members.
3. Decide whether to author a rebuttal argument as a whole Council or allow an organization or individual to author the rebuttal argument.
4. If the Council decides to author the rebuttal argument, decide whether to delegate drafting responsibilities to one or more Council members.

Town Attorney's Impartial Analysis

Finally, Elections Code section 9280 provides that whenever a local measure is placed on the ballot, the Council may direct the Elections Official to transmit a copy of the measure to the Town Attorney to prepare an impartial analysis showing the effect of the measure on existing law and the operation of the measure. The analysis may not exceed 500 words and is printed preceding the arguments for and against the measure.

Consolidated General Municipal Election Update

The Town Council must adopt a resolution calling and giving notice of the holding of a General Municipal Election to be held on Tuesday, November 3, 2026, and requesting the Board of Supervisors of the County of Napa to consolidate and render specified services to the Town relating to the conduct of the Statewide General Municipal Election to be held on the same date. The deadline to submit the request to the Board of Supervisors consolidating the General Municipal Election with Napa County is July 5, 2026.

The nomination period for candidates opens at 8:00 a.m. on July 13, 2026, and closes at 5:00 p.m. on August 7, 2026. In accordance with California Elections Code sections 10220-10230, this is the period during which individuals officially receive, circulate, and file nomination papers for candidacy. During this period, nomination papers may be issued by Town Clerk staff to any eligible candidate during regular business hours. Town Clerk staff will verify potential candidates' eligibility with the County prior to releasing nomination papers. If an incumbent fails to submit nomination papers by the deadline, non-incumbent candidates will have until 5:00 p.m. on August 12, 2026, to file nomination papers.

Candidates are encouraged to contact Town Clerk staff to schedule an appointment to take out and/or file nomination papers. Appointments may be made by contacting the Town Clerk's Office at (707) 944-8851 or via

email at townclerk@yville.com.

The Town's official 2026 Elections webpage is available as a reference. Additional information regarding the General Municipal Election, including candidate and voter assistance information, will be posted on the website as it becomes available throughout the election season.

ENVIRONMENTAL REVIEW

Exempt per California Environmental Act (CEQA) Guideline, Section 15061(b)(3) as an activity that has no potential for causing a significant effect on the environment.

FISCAL IMPACT

Is there a Fiscal Impact? Yes

Is it Currently Budgeted? Yes

Where is it Budgeted? 01-1110-4170

Is it Mandatory or Discretionary? Mandatory

Is there a Staff Resource Impact? Yes

ATTACHMENTS

1. Resolution No 26-4427